

Missing appointment of counsel for proposed conservatee. Missing appearance / response of court-appointed counsel.

Missing Alta California Regional Center report.

14. S-PR-0014381 In re the Conservatorship of Hinrichsen, Patricia

Appearance is required for continued hearing on petition for appointment of joint temporary conservators of the person of the person and estate.

Missing 5 court days' personal service of notice of hearing with copy of the temporary petition to respondent. Citation is not applicable to temporary conservatorship and was issued by the clerk in error. See Prob.C. § 2250(e).

Missing sufficient showing to authorize sale of conservatee's residence. Prob.C. § 2591(c)(1), by its express terms, does not apply to sale of a conservatee's residence. As provided in Prob.C. § 2591(c)(2), sale of conservatee's residence is governed by Prob.C. §§ 2591.5, 2352.5, 2540, 2541, 2541.5 and requires, inter alia, (i) disclosure of terms of sale (price, commissions), capital gains tax consequences of sale, disclose of impact on government benefits; (ii) a showing that the sale is in conservatee's best interest "in all respects"; (iii) that the sale is supported by a § 10309-compliant appraisal; that the sale has been discussed with conservatee; (iv) circumstances necessitating sale and showing why alternatives are not available; (v) review by court investigator with conservatee if ordered; (vi) notification to court of intent to sell "before conservator[s] commit[] *any significant resources* to the proposed sale; (vi) satisfactory statutory purpose of sale under § 2541; and (vii) clear and convincing evidence of "a compelling need to sell" the residence. The allegations do not appear to satisfy these requirements and reveal that petitioners, without authority, have already committed substantial resources to the proposed sale (sale is allegedly already in escrow). Note: the confidential screening form expresses a contrary plan to retain the residence and does not allege sale of the residence is necessary.

Missing appearance / response by court-appointed counsel.

Although the general conservatorship petition is not yet before the court, the following calendar notes are provided to assist petitioners to prepare for the October 5 hearing:

Although petitioners originally requested all Prob.C. §§ 2590–2591 powers in the temporary petition, it appears no §§ 2590–2591 powers are requested in the general petition.

Missing ¶ 3f(1) and Attachment 3f(1). Petitioners' reference to ¶ 11 of the petition is insufficient. ¶ 3f(1) requires a description of "[e]fforts to find (proposed) conservatee's relatives or reasons why it is not feasible to contact any of them . . . "; in contrast, ¶ 11 is a list of information concerning such relatives "so far as known to the petitioner." Each of these requests different information.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing. Local Rule 80.1.4.